

**FEDERAL MARITIME COMMISSION
WASHINGTON, D.C**

WAY 2 GO CARGO CORP.;

DOCKET NO.: 25-14

Complainant

v.

OAK WAY CARGO, LLC,

Respondent.

_____ /

**RESPONDENT'S STATEMENT IN COMPLIANCE
WITH ORDER FOLLOWING STATUS CONFERENCE**

Respondent, OAK WAY CARGO, LLC ("Respondent" or "Oak Way"), by and through the undersigned counsel, files this statement in compliance with the Administrative Law Judge's July 6, 2026 Order Following Status Conference, and states:

1. On July 6, 2026, the Administrative Law Judge held a status conference with the parties to help determine how to proceed with the issues presented by Respondent's Motion to Compel Discovery, Compel the Continued Deposition of the Corporate Representative of Way2Go Cargo Corp., and Extend Case Deadlines (the "MTC") and Complainant's response thereto.
2. Following the status conference, the Administrative Law Judge issued an Order Following Status Conference (the "Order") which ordered Complainant to produce documents and supplemental interrogatory answers no later than July 15, 2026 and otherwise held the MTC in abeyance. The Order further

instructed the parties to meet and confer and inform how they think this matter should proceed by no later than July 22, 2026.

3. The Order also provided the following analysis that is pertinent to this submission:

At this time, it is unclear if the production and supplementation will moot the MTC. If it does, then the parties may be able to conduct their hearing in writing (in the form of briefing), and bypass the expert discovery that is contemplated in the current case schedule. (*See* Order Granting Fourth Joint Motion to Extend Scheduling Order Deadlines). Alternatively, if Respondent believes more information is needed on the issue of reparations, it would be good to resolve the issue of whether reparations are even available in this case as a legal matter before ordering additional discovery on the issue of reparations. Accordingly, after the June 15 production, the parties should meet and confer, and then inform me how they think this matter should proceed.

4. On July 15, 2026, Complainant served additional documents along with Complainant's Supplemental and Amended Answers and Objections to Respondent's First Set of Interrogatories 1, 2, 3, 7, 8, 9, 11, 12, and 20 (the "Supplemental Answers"). A true and correct copy of Complainant's Supplemental Answers are attached as Exhibit A to Respondent's Appendix to this filing [RE 003 – RE 015].
5. On July 21, 2026, the undersigned and Jennifer Roldan, counsel for the Complainant, met and conferred via telephone conference in compliance with the Order. Despite their good faith attempt to agree on a unified approach, the parties have a fundamental disagreement about how this case should proceed

in light of the matters discussed during the July 6 status conference. Namely, it is Respondent's position that the Supplemental Answers do not moot the MTC and Respondent agrees that the issue of whether reparations are even available in this case should be determined as a legal matter before additional discovery on the issue of reparations is ordered. Complainant disagrees and takes the position that no further discovery on the issue of reparations should be ordered and that this case should proceed to a final hearing through briefing. Therefore, the parties could only agree to present their own statements on how this case should proceed so that the issue may be determined by the Administrative Law Judge.

6. Additionally, the parties do not agree on a briefing schedule that should be followed if the Administrative Law Judge determines that the issue of whether reparations are available in this case should be determined as a legal matter before additional discovery is ordered. It is Respondent's position that it should be given 30 days in which to prepare and file a dispositive motion—likely a motion for partial summary judgment—on the issue of reparations, that Complainant should be given 30 days to present a response, and that Respondent should be given 15 days for a reply. Such a briefing schedule is necessary so that Respondent can order and obtain the transcripts it will need with adequate time to prepare its briefing. Complainant disagrees and takes the position that any such briefing should be completed on a shorter schedule.
7. The Supplemental Answers do not moot the MTC for at least two reasons:

- a. First, the Supplemental Answers improperly raise various objections that were not included in Complainant's original answers to the subject interrogatories. *Compare* Complainant's Answers and Objections to Respondent's First Set of Interrogatories served February 2, 2026, attached as Exhibit B [RE 016 – RE 023] to Respondent's Appendix, to Exhibit A [RE 003 – RE 015]. Further discovery or litigation will be required to determine the extent to which Respondent is withholding information, if any, about the reparations it seeks in these proceedings on the basis of its objections.
- b. Second, the Supplemental Answers disclose two proposed total amounts of reparations that Complainant claims are stated in the alternative. *See* Exhibit A at request number 2 [RE 006 – RE 008]. Although requested by the interrogatories, no substantive calculations for those amounts has been given. *Id.* Complainant claims that each amount was calculated using "Respondent's own spreadsheet" and/or business records. *Id.* The records that Complainant claims it relied on to make its claimed "calculation" are only identified by 5 broad categories. *Id.* at request number 3 [RE 008 – RE 009]. These responses provide little to no substantive information about how Complainant calculated to its claimed damages totals. Respondent has produced several spreadsheets and volumes of business records in this proceeding. Accordingly, further

discovery, namely the continuation of the deposition of the corporate representative of the Complainant, is required to determine the substance of how Complainant's claimed damages totals were calculated, what information and records were relied in in making any such calculations, and what information and records were disregarded.

WHEREFORE, Respondent, Oak Way Cargo, LLC, respectfully requests that this Commission enter an order: (1) holding that the MTC remains in abeyance, (2) ruling that the issue of whether reparations are available in this case shall be determined as a legal matter before ordering additional discovery on the issue of reparations, and (3) setting forth a briefing schedule that gives Respondent 30 days in which to file its dispositive motion on the issue of reparations, gives Claimant 30 days to file its response, and gives Respondent 15 days to file its reply. Alternatively, if the Administrative Law Judge determines that this case will not proceed as requested above, Respondent, Oak Way Cargo, LLC, respectfully requests that this Commission grant the remaining relief requested by Respondent's Motion to Compel Discovery, Compel the Continued Deposition of the Corporate Representative of Way2Go Cargo Corp., and Extend Case Deadlines. Respondent further requests that this Commission grant such further relief that the Administrative Law Judge deems appropriate.

Dated: July 22, 2026.

Respectfully submitted,

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CERTIFICATE OF CONFERRAL

The undersigned certifies that, prior to filing this document, counsel for Respondent, Oak Way Cargo, LLC, conferred with counsel for Claimant, Way 2 Go Cargo Corp. via telephone conference on July 21, 2026, and that, despite their good faith efforts, the parties were unable to agree.

By: /s/Ronald R. Hink
Ronald R. Hink

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via e-mail upon the Office of the Secretary at secretary@fmc.gov with a copy to the presiding judge at judges@fmc.gov and served upon all counsel of record for Way 2 Go Cargo Corp., at sarah@epgdlaw.com and jennifer@epgdlaw.com on this 22nd day of July, 2026.

By: /s/Ronald R. Hink
Ronald R. Hink